

Shylaja Beegum @ Shylaja Babu vs Anoop A on 3 November, 2025

2025:KER:85030

IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT

THE HONOURABLE MR. JUSTICE EASWARAN S.

MONDAY, THE 3RD DAY OF NOVEMBER 2025 / 12TH KARTHIKA, 1947

RSA NO. 409 OF 2018

AGAINST THE JUDGMENT DATED 30.09.2013 IN OS NO.318 OF 2012 OF SUB COURT, KARUNAGAPPALLY ARISING OUT OF THE JUDGMENT DATED 31.10.2017 IN AS NO.3 OF 2014 OF ADDITIONAL DISTRICT COURT-IV, KOLLAM

APPELLANTS/APPELLANTS/RESPONDENTS 1 TO 3:

- 1 SHYLAJA BEEGUM @ SHYLAJA BABU,
D/O.AISHA BEEVI, KALLISSERIL, (AMBIKA VILASAM),
PAYIKUZHI, OACHIRA, KOLLAM.
- 2 ATHIRA S.BABU,D/O.SHYLAJA BEEGUM, KALLISSERIL,
(AMBIKA VILASAM), PAYIKUZHI, OACHIRA, KOLLAM.
- 3 ARATHI S.BABU,D/O.SHYLAJA BEEGUM, KALLISSERIL,
(AMBIKA VILASAM), PAYIKUZHI, OACHIRA, KOLLAM.

BY ADVS.

SRI.PIRAPPANCODE V.S.SUDHEER

SRI.JELSON J.EDAMPADAM

SMT.R.RANJANA

RESPONDENTS/RESPONDENTS/PLAINTIFF & DEFENDANTS 4 TO 9:

- 1 ANOOP A, S/O.BABU VIJAYANATH K.S., NADAYIL
MIZHAKKATHIL, MUZHANGODI,KALLELIBHAGOM,
THODIYOOR, KARUNAGAPPALLY-690 511.
- 2 THE STATE REPRESENTED BY THE SECRETARY TO
GOVERNMENT, RURAL DEVELOPMENT DEPARTMENT,
THIRUVANANTHAPURAM-695 001.
- 3 THE COMMISSIONER FOR RURAL DEVELOPMENT,
LMS COMPOUND, THIRUVANANTHAPURAM-695 001.

- 4 THE DISTRICT COLLECTOR,
KOLLAM 691 001.
- 5 ASST.DEVELOPMENT COMMISSIONER (GENERAL),
CIVIL STATION, KOLLAM 691 001.
- 6 THE TAHSILDAR,
TALUK OFFICE, KARUNAGAPPALLY 690 518.
- 7 THE BLOCK DEVELOPMENT OFFICER,
BLOCK OFFICE, OACHIRA 690 526.

BY SENIOR GOVERNMENT PLEADER SRI.K. DENNY DEVASSY

THIS REGULAR SECOND APPEAL HAVING COME UP FOR
ADMISSION ON 03.11.2025, THE COURT ON THE SAME DAY
DELIVERED THE FOLLOWING:

2025:KER:85030

EASWARAN S, J.

=====

R.S.A No.409 of 2018

=====

Dated this the 3rd day of November, 2025

JUDGMENT

This appeal arises from the concurrent findings entered by the Sub Court, Karunagappally in O.S No.318/2012 as affirmed by the Additional District Court - IV, Kollam in A.S No.3/14. The defendant in a suit for declaration as regards the status of the plaintiff and defendants 2 and 3 and also setting aside a legal heirship certificate has come up with the present appeal. The plaintiff claims that he is the only son of BabuVijayanath, who passed away under suspicious circumstance on 30.11.2007 while working as a U.D. Clerk in Block Development Office, Oachira, Kollam in the lawful wedlock with one Ajithakumari. After the dissolution of the marriage by the Sub Court, Kollam on 19.03.1990 in O.P(HMA) No.46/1987, it appears that late Babu Vijayanath had married the 1st appellant/1st defendant. At the time of marriage, the 1st defendant R.S.A No.409 of 2018 2025:KER:85030 was not belonging to the Hindu religion and was a Muslim. On the death of Babu Vijayanath, a legal heirship certificate was obtained by the 1st defendant stating that she is the legal heir of the deceased Babu Vijayanath. Questioning the sustainability of the legal heirship certificate, the 1st respondent/plaintiff approached the Sub Court. The appellant/1st defendant resisted the claim contending that there was a valid marriage between the deceased Babu Vijayanath and her. Defendants 2 and 3 were born in the wedlock. It was further contended that the marriage between

her and deceased Babu Vijayanath was conducted as per the ceremonies and Hindu custom. It was further contended that the suit is not maintainable because it is the Family Court, which has the exclusive jurisdiction to try the dispute which is now raised. On behalf of the plaintiff, Exts A1 to A15 documents were produced and PW1 was examined. On behalf of defendants Exts.B1 to B8 documents were produced and 1st defendant was examined as DW1. The trial court, on appreciation of the oral and documentary evidence, relied on the statement made by the 1st defendant/appellant herein in her cross examination that, at the time of marriage, she had not converted R.S.A No.409 of 2018 2025:KER:85030 herself to Hindu religion and even after the marriage she continued to be a Muslim and did not convert to Hindu religion. Therefore, it was concluded that under the provisions of Section 5 of the Hindu Marriage Act, 1955 the conditions prescribed therein has not been complied with and that, further there is no independent evidence adduced by her to prove that the marriage was solemnized in Kidanganparambu temple at Alappuzha. Finding that no marriage certificate or documents from the temple were produced and that no independent witnesses were examined to prove the solemnization of the marriage as per the Hindu tradition and custom, the trial court decreed the suit. Aggrieved, the defendants 1 to 3 preferred A.S No.3/2014, which was also dismissed by the first appellate court and hence the present appeal.

2. Heard Sri.Pirappancode V.S.Sudheer, learned counsel appearing for the appellant.

3. Learned counsel for the appellant pointed out that the findings rendered by the courts below are incorrect and that the suit itself was not maintainable in view of the bar contained under the provisions of R.S.A No.409 of 2018 2025:KER:85030 the Family Courts Act, 1984. It is the specific case of the learned counsel for the appellant that the marriage having been solemnized under the provisions of the Hindu Marriage Act by following the Hindu tradition and custom, the court below could not have held otherwise. It is further submitted that prior to the marriage, there was an agreement between late Babu Vijayanath and the 1st appellant, which was later preceded by the customary ceremonies. As regards the finding of the trial court on the alleged admission made by the 1st defendant in her cross examination, the learned counsel pointed out that it was not possible for the courts below to have picked some stray sentences from her oral testimony to hold that the marriage was not solemnized in accordance with the provisions of the Hindu Marriage Act.

4. On consideration of the submissions raised by the learned counsel for the appellant, this Court finds that no substantial question of law arises for consideration in the present appeal. The primary contention raised by the learned counsel for the appellant is regarding the jurisdiction of the civil court to entertain the suit of the present nature.

R.S.A No.409 of 2018 2025:KER:85030 The reading of the judgment of the trial court shows that the suit was instituted to declare the status of the plaintiff and also questioning the validity of the legal heirship certificate issued by the revenue officials. It is not shown before this Court as to how the bar contained under the provisions of the Family Courts Act is made applicable to the suit of the present nature. Admittedly, to enable the Family Court to have the jurisdiction and to entertain an application, the dispute should be necessarily between the husband and wife. In the present case, what is in question is the status of the 1st defendant as a legally wedded wife of late Babu Vijayanath. Therefore, this Court is of the considered view that the findings of the trial court, as affirmed by the

first appellate court, as on the maintainability of the suit, touching upon the civil rights of parties, is not maintainable before the Family Court and that unless a specific bar is found under the provisions of the Family Courts Act, it is always presumed that the civil court has jurisdiction under Section 9 of the Code of Civil Procedure, does not call for interference. That apart, the crucial question to be considered by this Court is whether the first appellant has discharged the burden of proving that the marriage R.S.A No.409 of 2018 2025:KER:85030 between herself and late Babu Vijayanath was solemnized in accordance with Hindu custom. Pertinently, the appellant did not adduce any independent evidence, nor did she produce any certificate from the temple authorities to prove that the marriage was solemnized in accordance with the Hindu tradition and in order to come within the purview of Section 5 of the Hindu Marriage Act, 1955. The 1 st appellant has no case that the marriage was registered under the provisions of Special Marriage Act also. That being so, the irresistible conclusion is that the 1st appellant has miserably failed to discharge the burden of proving that there existed a valid marriage as per the Hindu custom and tradition between herself and late Babu Vijayanath. That apart, no documentary evidence has been produced to show that she has converted to Hindu religion. Added to above, her own testimony that she continued to be a Muslim even after the marriage, is also crucial while considering the sustainability of the judgments rendered by the courts below.

R.S.A No.409 of 2018 2025:KER:85030

5. Since the findings rendered by the courts below as clearly hinges upon the appreciation of the evidence and that the said appreciation is not found to be vitiated by any perversity, this Court is of the considered view that no purpose would be served in admitting the appeal and proceeding to consider the case on merits.

Accordingly, the appeal fails and the same is dismissed.

Sd/-

EASWARAN S, Judge vdv